

24VECV06098 24VECV06098

County: los-angeles

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Case Number: 24VECV06098 Hearing Date: September 8, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Moshe Eliezer, et al.,

Plaintiffs,

v.

Robert A. Rudolph, et al.

Defendants.

Case Number Department

24VECV06098 107

COURT'S [TENTATIVE]
ORDER RE:

Motions for Leave to Amend Complaint

and Compel Depositions

Tentative:

(1) Grant Motion to Compel and request for monetary sanctions against Defendants in the reduced sum of \$4,926.00; (2) Deny Motion for Leave to Amend.

I.

BACKGROUND

This

is a landlord-tenant dispute. On October 19, 2019, Plaintiffs Moshe Eliezer and Mazal Eliezer ("Plaintiffs") entered a lease with Defendants Robert A. Rudolph aka Rudy A. Rudolph aka Rudy Rudolph aka Robert Rudolph ("Rudolph") and Catherine L. Littleton aka Catherine Littleton ("Littleton"). (Complaint ¶ 7.) Rudolph and Littleton leased a property located at 22403 Philipprimm Street, Woodland Hills, California 91367 (the "Subject Property"). (Complaint ¶ 2.)

On

December 9, 2024, Plaintiffs filed a complaint against Defendants Rudolph, Littleton, and Does 1 to 20, alleging a breach of written contract cause of action. (Complaint p. 3.)

On

February 13, 2025, Cross-Complainants Robert A. Rudolph and Catherine L. Littleton filed a cross-complaint against Cross-Defendants Moshe Eliezer and Mazal Eliezer alleging causes of action for: (1) violation of the Los Angeles Rent Stabilization Ordinance – LAMC section 151.00, et seq.; and (2) violation of the Los Angeles Tenant Anti-Harassment Ordinance – LAMC section 45.33, et seq.

On

February 24, 2026, Plaintiffs filed a motion to amend complaint (the "First Motion"). On May 1, 2026 the court denied the First Motion. (05/02/26 Minute Order p. 3.)

On

May 11, 2026, Plaintiffs filed another motion to amend complaint (the "Second Motion"). On July 31, 2026, the court denied the Second Motion. (07/31/26 Minute Order pp. 4-5.)

On

June 29, 2026, Plaintiffs filed a motion for order compelling Defendants to appear for their depositions (the "Motion to Compel"). As of September 2, 2026, no opposition has been filed.

On

August 6, 2026, Plaintiffs filed another motion to amend complaint (the "Motion for Leave to Amend"). On August 25, 2026, Defendants Robert A. Rudolph and Catherine L. Littleton ("Defendants") filed an opposition. On August 31, 2026, Plaintiffs filed a reply.

II.

MOTION

TO COMPEL

Meet and Confer

A motion to compel a deposition must be "accompanied by a meet and confer declaration under section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." 2 (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Plaintiffs' counsel's declaration

does not explicitly state counsel contacted Defendants' counsel to inquire about the failure to appear at the depositions, but the declaration shows Plaintiffs' counsel made repeated efforts to schedule the depositions and Defendants' counsel was present at the deposition where Defendants failed to appear. (Nadel Declaration (Motion to Compel) ¶¶ 2-3, 5, 7.) The court finds Plaintiffs satisfied the meet and confer requirement.

Legal

Standard

Code of Civil Procedure section 2025.210 provides that "[t]he plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." The deposition must be scheduled "for a date at least 10 days after

service of the deposition notice,” plus two court days when the notice is served electronically. (Code Civ. Proc., §§ 2025.270, subd. (a); 1010.6, subd. (a)(3)(B).)

“The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).)

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” (Code Civ. Proc., § 2025.410, subd. (a).)

If a motion to compel a deposition is granted, “the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Discussion

Plaintiffs

move for an order compelling Defendants to attend depositions within ten days of the Motion's hearing. (Motion to Compel p. 1.)

Plaintiffs'

counsel served Defendants by email with notices of depositions on May 27, 2026. (Nadel Declaration (Motion to Compel) ¶ 6; Ex. 1 pdf p. 23.) The notices set the depositions for June 10, 2026. (Nadel Declaration (Motion to Compel) ¶ 6.) Defendants' counsel told Plaintiffs' counsel on June 8, 2026, that one of the defendants could not attend. (Nadel Declaration (Motion to Compel) ¶ 6.) On June 10, 2026, Plaintiffs' counsel waited with Defendants' counsel, but Defendants did not appear. (Nadel Declaration (Motion to Compel) ¶ 6.)

The

court finds Plaintiffs are entitled to an order compelling Defendants to appear for depositions.

Plaintiffs

request \$8,926.00 in monetary sanctions against Defendants. (Motion pp. 1-2.) This reflects ten hours of attorneys' fees relating to the depositions, at \$500.00 per hour, and \$2,426.00 in costs. (Nadel Declaration (Motion to Compel) ¶¶ 3-10.) This also includes \$750.00 for each Plaintiff for 7.5 hours spent on June 10, 2026, talking with Plaintiffs' counsel and each other. (Moshe Eliezer Declaration (Motion to Compel) ¶ 4; Mazal Eliezer Declaration (Motion to Compel) ¶ 4.)

Nothing

before the court indicates Defendants acted with substantial justification or that other circumstances make imposing sanctions unjust.

The

court further finds that billing ten hours to schedule the depositions and prepare the Motion is excessive, given the Motion raises no complex legal issues and is unopposed. The court also will not grant the sanctions request for Plaintiffs' time talking to their counsel and each other. Plaintiffs cite no authority permitting them to recover the requested sum as sanctions. Further, Plaintiffs' declarations lack substantive support for their estimates their time is worth \$100.00 per hour. (Moshe Eliezer Declaration (Motion to Compel) ¶ 4; Mazal Eliezer Declaration (Motion to Compel) ¶ 4.)

The

request for sanctions is granted in the reduced sum of \$4,926.00, reflecting \$2,426.00 in costs and five hours of attorneys' fees, at \$500.00 per hour.

III.

MOTION

FOR LEAVE TO AMEND

Legal Standard

Code

of Civil Procedure section 1008, subdivision (b) states:

A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. For a failure to comply with this subdivision, any order made on a subsequent application may be revoked or set aside on ex parte motion.

"A

party filing a renewed application must, among other things, submit an affidavit showing what 'new or different facts, circumstances, or law are claimed' [citation] to justify the renewed application, and show diligence with a satisfactory explanation for not presenting the new or different information earlier[.]" (Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC ("Even Zohar") (2015) 61 Cal.4th 830, 833.)

Discussion

Plaintiffs

move for leave to amend the complaint to add a waste cause of action and edit the amount of rent arrearages. (Motion for Leave to Amend p. 2.)

In

opposition, as relevant here, Defendants argue Plaintiffs filed multiple unsuccessful motions in 2026, and have provided no satisfactory explanation as to "why these purportedly known claims and revised calculations were not

properly pleaded earlier, nor do they provide any credible justification for why the Court should entertain a third attempt after the Court has already denied amendment twice.” (Opposition (Motion for Leave to Amend) pp. 2-3.) Defendants further argue that “[s]erial amendment motions waste judicial resources, impose unnecessary costs on the opposing party, and delay resolution of the case.” (Opposition (Motion for Leave to Amend) pp. 3-4.)

In
reply, Plaintiffs argue Defendants cite no authority for their arguments.
(Reply (Motion for Leave to Amend) p. 2.)

Plaintiffs
move for the same relief sought in the First Motion and Second Motion. (First Motion p. 2; Second Motion p. 2.) Specifically, Plaintiffs request leave to amend their complaint to add a cause of action for waste and edit the amount of rent arrearages. (First Motion p. 2; Second Motion p. 2; Motion for Leave to Amend p. 2.)

Plaintiffs do not
submit an affidavit “showing
what ‘new or different facts, circumstances, or law are claimed’ [citation] to
justify the renewed application, and show diligence with a satisfactory
explanation for not presenting the new or different information earlier[.]” (Even
Zohar, supra 61 Cal.4th at p. 833.)

The
Motion for Leave to Amend is denied.

IV. CONCLUSION

For
the foregoing reasons, the Motion to Compel is granted. Defendants are ordered to appear for depositions within ten (10) days of this order. Plaintiffs’ request for monetary sanctions is also granted in the reduced sum of \$4,926.00, to be paid by Defendants to Plaintiffs’ counsel within thirty (30) days of this order.

The
Motion for Leave to Amend is denied.

Dated: September 8, 2026

Hon. Eric Harmon

Judge of the
Superior Court